

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

CELIA SPORER,

Plaintiff,

-against-

THE CITY OF NEW YORK and "JANE DOE",
said name being fictitious and is intended to identify
the police officer involved in the incident with the
Plaintiff on January 1, 2023,

Defendants,

-----X

Index No.:

Date Purchased: December 27, 2023

SUMMONS

Plaintiff designates:

KINGS COUNTY

as the Place of Trial

The basis of the venue is:

CPLR §503(a)

Plaintiff resides at:

310 Washington Avenue

Cedarhurst, New York 11516

JURY TRIAL DEMANDED

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: East Meadow, New York
December 27, 2023

BRAND, GLICK & BRAND, P.C.
Attorneys for Plaintiff

BY:



ROMAN J. SHAKH, ESQ.

90 Merrick Avenue, Suite 203

East Meadow, New York 11554

T. (516)746-3500

F. (516)294-9744

BGB File No.: (11817 RJS/kwp)

RIDER:

THE CITY OF NEW YORK

100 Church Street
New York, New York 10007

Police Officer - "JANE DOE"

c/o The City of New York
100 Church Street
New York, New York 10007

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Index No.:

**VERIFIED
COMPLAINT**

Plaintiff, by his attorneys, BRAND GLICK & BRAND, P.C., as and for her Verified Complaint,
respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned and prior thereto, the plaintiff, CELIA SPORER, was and still is an adult resident of the County of Nassau, State of New York.

2. That at all times hereinafter mentioned and prior thereto, the defendant, THE CITY OF NEW YORK (hereinafter referred to as "defendant NYC"), was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

3. That at all times hereinafter mentioned and prior thereto, defendant NYC has established and maintained a department of police, as a constituent department or agency of said defendant, commonly known and designated as "The New York City Police Department."

4. That at all times hereinafter mentioned and prior thereto, The New York City Police Department was established by defendant NYC, and is maintained by said defendant as a constituent department or agency

5. That at all times hereinafter mentioned and prior thereto, defendant NYC has established and maintained said department of police commonly known and designated as The New York City Police Department, as a constituent department or agency of defendant NYC.

6. That at all times hereinafter mentioned and prior thereto, defendant NYC was and is a municipal entity created and authorized under the laws of the State of New York. Said defendant was and is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant NYC assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by the New York City Police Department.

7. That at all times hereinafter mentioned and prior thereto, defendant NYC was and is a municipal entity created and authorized under the laws of the State of New York. Said defendant was and is authorized to maintain a police department, commonly known and designated as The New York City Police Department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant NYC assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by The New York City Police Department.

8. That at all times hereinafter mentioned and prior thereto, defendant NYC, its agents, servants, employees, representatives, and others on said defendant's behalf, operated, supervised, directed, maintained, monitored, oversaw and controlled The New York City Police Department, including the hiring, training and supervision of all police officers thereof.

9. That at all times hereinafter mentioned and prior thereto, the defendant, "JANE DOE" said name being fictitious, as the actual name and identification of said individual police officer, employed by The City of New York and/or The New York City Police Department, is unknown at present (hereinafter referred to as "JANE DOE"), was employed by defendant NYC as police officers with NYPD.

10. That a Notice of Claim was duly served and filed with the office of the Comptroller/Comptroller of the City of New York, pursuant to the applicable provisions of the General Municipal Law, which Notice of Claim was served and filed within ninety days following the date of incident upon which the subject action is based, and before the commencement of the action, and this action was commenced against defendants NYC and JANE DOE, within one (1) year and ninety (90) days after the date of accrual of this action.

11. That on March 21, 2023, a Notice of Claim was duly served and filed with the office of the Comptroller/Comptroller of the City of New York, which Notice of Claim was served and filed within ninety (90) days following the date of incident upon which the subject action is based and before the commencement of the action; and this action was commenced within one (1) year and ninety (90) days after the accrual of this cause of action and as such, plaintiff has satisfied all conditions precedent to lawful commencement of the within action against defendants NYC and "JANE DOE"

12. That pursuant to the applicable provisions of the General Municipal Law, the plaintiff, CELA SPORER, appeared for a 50-h hearing on July 24, 2023, conducted by and/or on behalf of defendants NYC and "JANE DOE" and prior to the date of commencement of the subject action.

13. That defendants NYC and "JANE DOE" have failed and refused to pay and/or adjust the claim within the statutory period of time following the happening of the event upon which the claim is based.

14. That this action has been commenced within one year and/or one (1) year and ninety (90) days following the happening of the event upon which the claim is based.

15. That at all times hereinafter mentioned, defendant "JANE DOE" was acting within the scope of their employment as police officer with the New York City Police Department.

16. That at all times hereinafter mentioned, defendant "JANE DOE" was acting under color of law and authority as police officer with the New York City Police Department.

17. That at all times hereinafter mentioned, defendant "JANE DOE" was acting within the scope of their employment as police officer with The New York City Police Department, pursuant to her employment with defendant NYC.

18. That at all times hereinafter mentioned, defendant "JANE DOE" was acting under color of law and authority as police officer with The New York City Police Department, pursuant to her employment with defendant NYC.

19. That at all times hereinafter mentioned, defendant NYC employed defendant "JANE DOE".

20. That at all times hereinafter mentioned, defendant NYC employed defendant "JANE DOE", in her capacity as police officer with The New York City Police Department.

21. That at all times hereinafter mentioned, defendant "JANE DOE" was acting pursuant to her capacity as an employee of defendant NYC.

22. That at all times hereinafter mentioned, defendant "JANE DOE" was acting pursuant to her capacity as an employee/police officer of defendant NYC, working for and/or on behalf of The New York City Police Department.

23. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendant were taken in the course of their duties and were incidental to their otherwise lawful function as agents, servants, employees, and/or representatives of defendant NYC.

24. That on January 1, 2023, at approximately 1:00 a.m., within a parting premises commonly known and designated as Stillwell Avenue Subway Station, located at or near 2901 Stillwell Avenue, Brooklyn, New York in the County of Kings, City and State of New York, defendants NYC and JANE DOE falsely and wrongfully assaulted and battered the plaintiff without any provocation.

25. That on January 1, 2023, at approximately 1:00 a.m., defendant "JANE DOE" exercised physical force upon a third-party which was excessive, unreasonable and unwarranted, cause plaintiff physical pain, injury and discomfort.

26. That the plaintiff, CELIA SPORER, made complaints to defendant “JANE DOE” regarding her aggressive and violent conduct directed at a third-party, who was suffering from a medical emergency, which complaints were ignored by said defendant.

27. That defendant “JANE DOE” struck, shoved, pushed and physically battered the plaintiff in such an abusive manner, so as to cause the plaintiff to violently fall to the ground.

28. That the police officer, presumably the partner of defendant “JANE DOE” did not provide any help or assistance to the plaintiff while at the scene of plaintiff's said assault.

29. That said excessive physical force was perpetrated upon the plaintiff, CELIA SPORER, by defendant “JANE DOE”, as police officer employed by and/or acting on behalf of defendant NYC.

30. That said excessive physical force perpetrated upon the plaintiff, CELIA SPORER, by defendant “JANE DOE”, occurred without any provocation or incitement on the part of the plaintiff.

31. That said excessive physical force perpetrated upon the plaintiff, CELIA SPORER, by defendant “JANE DOE”, occurred without any provocation or incitement on the part of the third-party.

32. That defendant “JANE DOE”, acting as New York City Police Officer on behalf of defendant NYC, as well as defendant NYC's agents, employees, servants, representatives, and/or others acting upon defendants' behalf, acted in bad faith and without probable cause or reasonable basis in exercising the level and degree of force against the plaintiff, none of which was with plaintiff's consent.

33. That on January 1, 2023, at approximately 1:00 a.m., plaintiff was assaulted and battered by defendant police officer “JANE DOE” without reasonable or probable cause.

34. That on January 1, 2023, at approximately 1:00 a.m., police officer “JANE DOE” used unnecessary and excessive force.

35. That plaintiff sustained severe personal injuries as a result of the defendant police officer's use of unnecessary and excessive force.

36. The incident resulted from the intentional, wanton, wrongful conduct of the defendants, including police officer “JANE DOE”.

37. That the incident as aforescribed resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

38. As a result of the foregoing, plaintiff sustained compensatory damages and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A SECOND CAUSE OF ACTION

39. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

40. The acts and omissions of the individual defendants were performed under the color and within the scope and in furtherance of their employment.

41. The aforementioned conduct of all defendants, especially that of defendant police officer "JANE DOE", was extreme and outrageous and exceeded all reasonable bounds of decency.

42. The aforementioned conduct was unnecessary, intentional and done for the sole purpose of causing severe emotional distress to plaintiff CELIA SPORER.

43. Plaintiff CELIA SPORER has suffered severe and permanent physical, psychological, emotional and mental injuries as a result of the defendants' actions.

44. As a result of defendants' conduct, plaintiff, CELIA SPORER, demand judgment against defendants in a sum of money to be determined at trial including compensatory and punitive damages along with costs and attorney's fees.

AS AND FOR A THIRD CAUSE OF ACTION

45. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

46. The acts of defendant police officer "JANE DOE" were intentional, malicious and were committed with wanton disregard for the plaintiffs' rights.

47. The acts of defendant police officer "JANE DOE" intentionally placed plaintiff, CELIA SPORER, in fear of imminent and offensive contact.

48. The defendant police officer "JANE DOE's" actions were unreasonable, unwarranted, and constituted use of excessive force.

49. Defendant "JANE DOE" committed these acts without legal justification or consent of the plaintiff.

50. Defendant "JANE DOE" intentionally made bodily contact with plaintiff, CELIA SPORER, that was offensive and caused plaintiff severe and permanent physical and psychological injuries.

51. As a result of defendants' conduct, plaintiff, CELIA SPORER, demands judgment against defendants in a sum of money to be determined at trial including compensatory and punitive damages along with costs and attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION

52. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

53. Defendant NYC and defendant "JANE DOE" police officer were in an employee-employer relationship in that defendant "JANE DOE" was employed as a patrolwoman with the NYPD.

54. Defendant NYC knew and should have known about defendant "JANE DOE's" history of escalating violence.

55. Defendant NYC continued to employ defendant "JANE DOE".

56. The NYC should have terminated defendant "JANE DOE" in light of her history, or at a very minimum, removed defendant "JANE DOE" from her official position with the department to minimize the risk of violence to the general public, and specifically to the plaintiff herein.

57. Instead, the NYC continued to employ defendant "JANE DOE" and permit her to patrol the streets of New York, which but for her employment with the NYC, she would never have been in a position to assault, batter, and injure the plaintiff herein.

58. Defendant, NYC permitted defendant "JANE DOE" to respond to calls for service despite having knowledge that defendant "JANE DOE" was not suitable to interact with general public and would likely misuse her authority.

59. Defendant NYC knew or should have known of defendant "JANE DOE's" propensity to commit harm upon plaintiff, including the use of excessive force based upon her history of violent behavior that warranted her termination from the NYPD and Defendant City of New York's failure to take action constitutes deliberate indifference.

60. Defendant "JANE DOE" violated plaintiff's rights under the New York State Constitution and New York Law.

61. Defendant NYC failed to use reasonable care in the hiring and retention of the employees who caused plaintiff, CELIA SPORER, to be severely physically harmed and to be mentally and emotionally damaged.

62. Defendant NYC failed to train and adequately supervise its officers so as to prevent the violation of plaintiff's rights including excessive force, assault and battery as described herein.

63. But for defendant NYC failing to terminate defendant "JANE DOE's" employment upon her known prior conduct, the plaintiff would not have been injured.

64. Defendant NYC is responsible for the actions of their employees, and specifically of defendant “JANE DOE”, because the lack of training and supervision ensured employees, such as defendant “JANE DOE”, would take actions that would deprive citizen of his rights.

65. The foregoing acts, omissions and systematic failures are customs and policies of the defendant NYC, and specifically its police department.

66. Defendants failed to use reasonable care in the training and supervision of the aforesaid employees who caused plaintiff to be harmed.

67. Defendant NYC was negligent in that prior to and at the time of the acts complained herein, due to the prior history of defendant “JANE DOE”, knew or should have known the negative and alarming disposition and propensity of defendant “JANE DOE” to commit such acts.

68. Defendant NYC had knowledge of facts that would put a reasonably prudent employer on inquiry concerning defendant “JANE DOE’s” negative and alarming disposition and the fact that she was not suitable to be hired and employed by the defendant NYC in its police department, and that due to their lack of training, defendant “JANE DOE” should have had adequate supervision and training so that they would not perpetrate the actions described above. Thus, the defendant NYC is liable for the negligent hiring, retention, and supervision, failure to train, and under the theory of *Respondent Superior*.

69. Plaintiff, CELIA SPORER, suffered severe and permanent physical, psychological, emotional, and mental injuries as a result of the defendants’ actions.

70. As a result of defendants’ conduct, plaintiff, CELIA SPORER, demands judgment against Defendants in a sum of money to be determined at trial including compensatory and punitive damages along with costs and attorney’s fees.

AS AND FOR A FIFTH CAUSE OF ACTION

71. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

72. The defendants’ conduct and the resulting injuries to plaintiff’s mind and body were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and/or employees, including defendant police officer “JANE DOE”, without any negligence on the part of the plaintiff contributing thereto.

73. The defendant NYC is liable under the principle of *respondeat superior*.

74. By reason of the foregoing, plaintiff was damaged in a sum, which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction

AS AND FOR A SIXTH CAUSE OF ACTION

75. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

76. The acts of the individual defendants were willful, wanton, malicious, and oppressive and were motivated solely by the desire to harm the plaintiff without regard for her well-being and were based on a lack of concern and ill-will towards plaintiff, CELIA SPORER. Such acts therefore warrant an award of punitive damages.

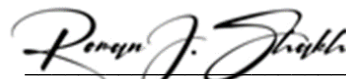
WHEREFORE, plaintiff, CELIA SPORER, demands judgments against the defendants as follows:

- a. For compensatory damages of not less than Ten Million Dollars;
- b. For punitive damaged of not less than Ten Million Dollars;
- c. For reasonable attorneys' fees, together with costs and disbursements; and
- d. Together with such other and further relief as this Court may deem just and proper.

Dated: East Meadow, New York
December 27, 2023

BRAND, GLICK & BRAND, P.C.
Attorneys for Plaintiff

BY:



ROMAN J. SHAKH, ESQ.
90 Merrick Avenue, Suite 203
East Meadow, New York 11554
T. (516)746-3500
F. (516)294-9744
BGB File No.: (11817-RJS/kwp)

RIDER:

THE CITY OF NEW YORK

100 Church Street
New York, New York 10007

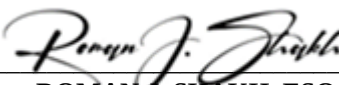
Police Officer - "JANE DOE"

c/o The City of New York
100 Church Street
New York, New York 10007

ATTORNEY CERTIFICATION

I, **ROMAN J. SHAKH, ESQ.**, hereby certify under penalty of perjury and as an officer of the court that, to the best of my knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, the presentation of the attached paper or the contentions therein are not frivolous as defined in subsection (c) of section 130-1.1 of 22 NYCRR.

Dated: East Meadow, New York
December 27, 2023



ROMAN J. SHAKH, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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CELIA SPORER,

Plaintiff,

-against-

THE CITY OF NEW YORK and "JANE DOE",
said name being fictitious and is intended to identify
the police officer involved in the incident with the
Plaintiff on January 1, 2023,

Defendants,

-----X

STATE OF NEW YORK)

) ss.:

COUNTY OF NASSAU)

ROMAN J. SHAKH, an attorney duly admitted to practice law in the Courts of the State of New York,
hereby affirms to the truth under the penalties of perjury:

That I am a member of the law firm of **BRAND GLICK & BRAND, P.C.**, the attorneys of record for the
plaintiff(s) in the within action; that affirmant has read the foregoing **VERIFIED COMPLAINT** and knows the
contents thereof; that the same is true to affirmant's own knowledge, except as to those matters therein stated to be
alleged on information and belief and that those matters affirmant believes to be true. Affirmant further says that the
reason this affirmation is made by affirmant not by plaintiff(s) is that plaintiff(s) do not reside within the County
wherein affirmant maintains his office.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are as follows:
statements of the plaintiff(s), and affirmant's own general investigation into the facts and circumstances of this
action.

Dated: East Meadow, New York
December 27, 2023

BRAND, GLICK & BRAND, P.C.
Attorneys for Plaintiff

BY:



ROMAN J. SHAKH, ESQ.
90 Merrick Avenue, Suite 203
East Meadow, New York 11554
T. (516)746-3500
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Plaintiff,

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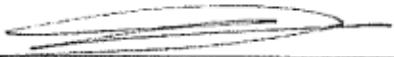
) ss.:

COUNTY OF NASSAU)

CELIA SPORER, being duly sworn, deposes and says:

I am the plaintiff in the action; I have read the foregoing Verified Complaint and know the contents thereof;
the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and
belief, and as to those matters, I believe it to be true.

Dated: East Meadow, New York
December 27, 2023

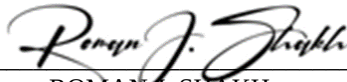

CELIA SPORER

STATE OF NEW YORK)

) ss.:

COUNTY OF NASSAU)

On this 28th day of December of 2023, before me the undersigned personally came CELIA SPORER, to me known
to be the person described hereinabove and who executed this instrument.



ROMAN J. SHAKH